

Court No. - 34

Case :- WRIT - C No. - 34972 of 2019

Petitioner :- Gufaran

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Mohd. Aslam

Counsel for Respondent :- Chandan Agarwal

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajeev Misra, J.

1. Heard learned counsel for petitioner and Sri Chandan Agarwal, learned counsel representing respondent nos. 1 and 2.

2. Present writ petition is directed against order dated 18th September, 2019 passed by Consumer Grievance Redressal Forum, Saharanpur whereby complaint filed by petitioner has been rejected on the ground that Forum has no jurisdiction to entertain complaint of petitioner and remedy lies to petitioner under the provisions of Sections 126 and 127 of Electricity Act, 2003 (hereinafter referred to as Act, 2003) read with Clause 8.1 of Electricity Supply Code, 2005 (hereinafter referred to as Supply Code). Apart from above, Petitioner has also challenged provisional assessment notice 04.07.2019 issued by respondent no.2, Executive Engineer Pachimanchal Vidyut Vitran Nigam Ltd, Electricity Distribution Division Deoband, District-Saharanpur.

3. Counsel for petitioner submits that Forum while rejecting complaint filed by petitioner on the ground of lack of jurisdiction has made certain observations, which are detrimental to the interest of petitioner. Once Forum took the view that it has no jurisdiction to try complaint, it ought to have dismissed complaint on that ground alone without advert to merits of complaint.

4. In our view, since the dispute relates to assessment proceedings on

allegations of theft and extra load of electricity, Forum rightly held that it held had no jurisdiction in the matter. At this stage, learned counsel for petitioner also did not dispute that Forum had no jurisdiction to hear complaint of petitioner.

5. However, he submits that certain observations made by Forum in impugned order regarding unauthorized use of electricity may create difficulty for petitioner. We find substance in the argument raised by counsel for petitioner. Accordingly we clarify that observations made by Forum in the impugned order dated 18th September, 2019 shall not be treated to be an expression of opinion of Forum on merits of matter. Competent authority shall examine the matter on merits independently ignoring the observations made by Forum on merits of the case.

6. It is next contended that show cause notice dated 4th July, 2019 is not in accordance with the provisions of section 126 of Act, 2005 as held by this Court in **M/S Mohit Paper Mills Ltd. and another V. PVVNL and others 2011 (9) ADJ 239** and by a Division Bench in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660**. He also relied upon judgement of Supreme Court in **ORYX Fisheries Private Limited V. Union of India and Others 2010 (13) SCC 427**. For ready reference paragraphs No. 23, 24, 27 and 29 of above judgement of Supreme Court are reproduced herein under:

“23. Relying on the underlined portions in the show-cause notice, learned counsel for the appellant urged that even at the stage of the show-cause notice the third respondent has completely made up his mind and reached definite conclusion about the alleged guilt of the appellant. This has rendered the subsequent proceedings an empty ritual and an idle formality.

24. This Court finds that there is a lot of substance in the aforesaid contention. It is well settled that a quasi-judicial

authority, while acting in exercise of its statutory power must act fairly and must act with an open mind while initiating a show-cause proceeding. A show-cause proceeding is meant to give the person proceeded against a reasonable opportunity of making his objection against the proposed charges indicated in the notice.

27. It is no doubt true that at the stage of show-cause, the person proceeded against must be told the charges against him so that he can take his defence and prove his innocence. It is obvious that at that stage the authority issuing the charge-sheet, cannot, instead of telling him the charges, confront him with definite conclusions of his alleged guilt. If that is done, as has been done in this instant case, the entire proceeding initiated by the show-cause notice gets vitiated by unfairness and bias and the subsequent proceeding become an idle ceremony

29. In the instant case from the underlined portion of the show-cause notice it is clear that the third respondent has demonstrated a totally closed mind at the stage of show-cause notice itself. Such a close mind is inconsistent with the scheme of Rule 43 which is set out below. The aforesaid Rule has been framed in exercise of the power conferred under Section 33 of The Marine Products Export Development Authority Act, 1972 and as such that Rule is statutory in nature.”

7. In so far as the judgement in **ORYX Fisheries Private Limited (supra)** is concerned, we find that there, in the show cause notice, necessary facts were not specifically recorded.

8. In in present writ petition whether assessment notice is in accordance with requirement of statute and law laid down by this Court or not could

have been pointed out by petitioner by submitting his reply before Assessing Officer. It is an admitted position that no reply has been submitted by petitioner though petitioner has remedy by submitting reply to show cause notice and raise all his grievances. Therefore, in our view challenge to provisional assessment notice is premature.

9. We therefore dispose of this writ petition observing that in respect of Assessment order dated 04.07, 2019, petitioner has remedy to reply raising all his grievances before Assessing Authority concerned. If such a reply is submitted before Assessing Authority, the same shall thereafter be examined by it and appropriate order shall be passed in accordance with law.

Order Date :- 31.10.2019

YK